

HOUSE No. 2599

The Commonwealth of Massachusetts

PRESENTED BY:

Carol A. Doherty

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the use of green lights for municipal emergency management vehicles.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carol A. Doherty</i>	<i>3rd Bristol</i>	<i>1/16/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>

HOUSE No. 2599

By Representative Doherty of Taunton, a petition (accompanied by bill, House, No. 2599) of Carol A. Doherty and James K. Hawkins relative to the use of green lights for municipal emergency management vehicles. Public Safety and Homeland Security.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the use of green lights for municipal emergency management vehicles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 as appearing in the 2020 official edition is hereby amended by
2 inserting after section 7E the following new section:

3 7E1/2. No motor vehicle operated pursuant to section seven other than MassDOT or
4 municipal public works and emergency management vehicles shall mount or display a flashing,
5 rotating or oscillating green light in any direction, except as herein provided; that nothing in this
6 section shall prohibit an official police vehicle from displaying a flashing, rotating or oscillating
7 red light in the opposite direction in which the vehicle is proceeding or prohibit fire apparatus
8 from displaying a flashing, rotating or oscillating blue light in the opposite direction in which the
9 vehicle is proceeding.

10 A vehicle owned or operated by the municipal emergency management or public works
11 department as appointed by the municipal governing body may have mounted thereon flashing,
12 rotating or oscillating green lights. Such lights shall only be displayed when such owner or

operator is proceeding to an emergency or in response to an alarm and when the official duty of such owner or operator requires them to proceed to said emergency or to respond to said alarm, or, for public works department, for official public works activities, and at no other time.

No such green light shall be mounted or displayed on such vehicle until proper application has been made to the registrar by the emergency management director or public works director or similar title, as appointed by the municipalities governing body and a written permit has been issued and delivered to the owner and operator. In the event that the operator is not the registered owner of the vehicle, no permit shall be issued until said owner forwards to the registrar a written statement certifying that he has knowledge that such green light will be mounted and displayed on said vehicle.

Any person operating a private or commercial vehicle upon which flashing, rotating or oscillating green lights herein authorized are mounted shall have the permit for said lights upon their person or in the vehicle in some easily accessible place. Upon termination of the duties which warranted the issuance of the permit, the mayor or chair of the board of selectmen shall immediately notify the registrar who shall forthwith revoke such green light permit. Upon the written request of the mayor or board of selectmen of the municipality in which such permitted vehicle is registered, the registrar may revoke such permit. The registrar shall revoke such permit for the unauthorized use of such green lights and the owner and operator shall be subject to a fine as hereinafter provided.

Upon revocation, the registrar of motor vehicles shall notify forthwith the owner and operator of the vehicle for which such permit was issued and the head of the police department and fire department of the town in which his original permit was issued.

35 The registrar may also make such rules and regulations governing or prohibiting the
36 display of such other lights on motor vehicles as he may deem necessary for public safety. Any
37 person who violates any provision of this section for which a penalty is not otherwise provided
38 shall be subject to a fine of not less than five hundred dollars, nor more than one thousand
39 dollars.